

26STCV01061 26STCV01061

County: los-angeles

Division: Civil Law and Motion

Department: 507

Hearing date: 2026-07-22

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C507%2C07%2F22%2F2026

Source SHA-256: 949c408066e79dd35a6dc0781f03790a8502e39f7799ff0808ba1c0eb42df02c

Case Number: 26STCV01061 Hearing Date: July 22, 2026 Dept: 507

Tentative Ruling

Judge Rolf M. Treu, Department 507

HEARING DATE: July 22, 2026 TRIAL

DATE: None

CASE: Robert Estrada v. California Automobile

Insurance Company

CASE NO.: 26STCV01061

MOTION

FOR LEAVE TO FILE FIRST AMENDED COMPLAINT

MOVING PARTY: Plaintiff Robert Estrada

RESPONDING PARTY(S): Defendant

California Automobile Insurance Company

PROOF

OF SERVICE:

Correct

Address: No.

16/21

(CCP § 1005(b)): INSUFFICIENT. No proof of service filed.

CASE

HISTORY:

01/13/26:

Complaint filed.

02/17/26:

Answer filed.

STATEMENT

OF MATERIAL FACTS AND/OR PROCEEDINGS:

This is a breach of contract action. On January 13, 2026, plaintiff Robert Estrada ("Plaintiff") filed a complaint against defendants California Automobile Insurance Company ("Defendant") and DOES 1 through 50, inclusive, alleging causes of action for (1) Breach of Contract; and (2) Breach of Implied Covenant (Bad Faith). Plaintiff alleges, inter alia, that Defendant failed to issue payment for a covered loss pursuant to an insurance policy. (Compl. ¶¶ 9-15.)

On May 8, 2026, Plaintiff filed the instant motion for leave to file first amended complaint. Plaintiff moves "to amend the [c]omplaint to substitute [N]orma Estrada, the real party in interest in pla[c]e of Robert Estrada, [w]ho is de[c]ceased." (Not. of Mot. at p. 1:25-27.) The motion is made on the grounds "that the original [c]omplaint . . . contained a clerical error in identifying the Plaintiff as 'Robert Estrada', who is now deceased." (Id. at p. 2:1-2.)

On July 9, 2026, Defendant filed and served an opposition.

As of Friday, July 17, 2026, as of 2:14 P.M., no reply brief has been filed. Any reply was required to have been filed and served at least five court days prior to the hearing. (Code Civ. Proc., § 1005, subd. (b).)

TENTATIVE RULING:

Plaintiff's motion for leave to file
first amended complaint is DENIED WITHOUT PREJUDICE.

Moving party to give notice, unless
waived.

DISCUSSION:

Motion for Leave
to File First Amended Complaint

Preliminary Issues

"[A]ll moving and supporting papers shall be served and filed at least 16 court days before the hearing." (Code Civ. Proc., § 1005, subd. (b).) "[D]ue process requires a party be fully advised of the issues to be addressed and be given adequate notice of what facts it must rebut in order to prevail." (Fenn v Sherriff (2003) 109 Cal.App.4th 1466, 1481.) "Proof of service of the moving papers must be filed no later than five court days before the time appointed for the hearing." (Cal. Rules of Court, Rule 3.1300(c).)

Plaintiff failed to file a proof of service in support of the motion. Although opposing counsel declares that she was served with the motion on May 27, 2026 (Declaration of Natalia Duque Filed July 9, 2026 ("Duque Decl.") ¶ 12), Plaintiff was required to file a proof of service no later than five court days prior to the hearing. The Court has reviewed the docket, and no proof of service has been filed in support of the motion. Accordingly, Plaintiff has not complied with California Rules of Court, rule 3.1300(c).

Legal Standard

The trial court has discretion to allow amendments to pleadings in the furtherance of justice. (Code Civ. Proc. § 473, subd. (a)(1).) "The court may . . . allow a party to amend a pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect" (Id.) "Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading." (Code Civ. Proc. § 576.) "There is a policy of great liberality in permitting amendments to the pleadings at any stage of the proceeding." (Berman v.

Bromberg (1997) 56 Cal.App.4th 936, 945 [citations omitted].)

The Motion is Procedurally Deficient

On opposition, Defendant contends that the motion does not comply with California Rules of Court, rule 3.1324 and therefore should be denied. (Opp'n at p. 3.)

A motion for leave to amend must include a separate declaration specifying: "(1) The effect of the amendment; (2) Why the amendment is necessary and proper; (3) When the facts giving rise to the amended allegations were discovered; and (4) The reasons why the request for amendment was not made earlier." (Cal. Rules of Court, Rule 3.1324(b).) A motion for leave to amend must "[i]nclude a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments." (Cal. Rules of Court, Rule 3.1324(a)(1).) Moreover, a motion to amend must "[s]tate what allegations in the previous pleading are proposed" to be deleted or added, if any, and must set forth the page, paragraph, and line number of such allegations. (Cal. Rules of Court, Rule 3.1324(a)(2)-(3).)

In support of the motion, Plaintiff's counsel declares, *inter alia*, that the original complaint named Robert Estrada. (Declaration of Hassan Halawi Filed May 8, 2026 ("Halawi Decl.") ¶ 2.) It has been learned that Robert Estrada is deceased. (Id. ¶ 3.) "The proper party is Norma Estrada, his spouse, who is a named insured under the subject insurance policy." (Id. ¶ 4.) "The inclusion of Robert Estrada was inadvertent and constitutes a clerical error." (Id. ¶ 5.) "Plaintiff attempted to obtain a stipulation to correct this issue, but Defendant declined." (Id. ¶ 6.)

The Court finds that the declaration of Attorney Halawi does not comply with the requirements of California Rules of Court, rule 3.1324. Attorney Halawi does not state: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; or (4) why the request for amendment was not made earlier. A party seeking leave to amend a pleading must "make the evidentiary showing required by rule 3.1324 of the California Rules of Court." (*Hataishi v. First American Home Buyers Protection Corp.* (2014) 223 Cal.App.4th 1454, 1469.)

Due to the failure of Plaintiff to satisfy the requirements of California Rules of Court, rule 3.1324, the motion for leave to file first amended complaint is DENIED WITHOUT PREJUDICE.

Moving party to give notice.

IT IS SO ORDERED.

Dated: July 22, 2026

Rolf M. Treu

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.